

Annexure-10-B

SUPPLEMENTARY AGREEMENT

(SARFAESI Action kept in Abeyance - Reasons other than OTS)

This Supplementary Agreement is executed at _____ on this _____ day of _____ between M/s _____ (_____, _____) (hereinafter referred to as "the Borrower" which term shall include its successors and assigns) and [BANK NAME], a body corporate constituted under Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 having its Head Office at [HEAD OFFICE ADDRESS] and, inter alia, a Branch Office at _____ (hereinafter referred to as "the Bank" which term shall include its successors and assigns).

WHEREAS the Borrower has availed, inter alia, the following facility/ies from the Bank: _____, limit Rs. _____.

WHEREAS the above said facility/ies has/have been secured by the following securities: _____.

WHEREAS the Bank, in terms of the provisions of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (SARFAESI ACT), has issued 60 days notice/have taken further steps, namely _____ in exercise of the powers given under the Act, in respect of the said security (hereafter referred to as 'the said security').

WHEREAS the borrower has shown his / her inability to pay the total outstanding amount under the said credit facilities within the prescribed period.

WHEREAS the Borrower has requested the Bank to hold on the enforcement of security interest in respect of the said security due to the reason _____.

Whereas the bank has agreed to the justification/reason given by the borrower and also to hold on enforcement of security interest _____ (not exceeding a period of 60 days).

NOW, THIS AGREEMENT WITNESSETH:

1. The Borrower agrees and acknowledges that the amount outstanding in respect of the abovesaid facility/ies is Rs. _____ (Rupees _____ only) on _____ as under: _____.
2. The Bank and the Borrower agree that possession notice earlier issued by the Bank be treated as not having acted upon. The Borrower confirms that the possession of the secured asset taken by the Bank, has been restored back to him / them in good condition as was taken by the Bank.
3. The Borrower confirms the continuance of the said security and other securities as before.
4. In the event of any default/unable to sort out the reasons to hold on SARFAESI action within prescribed period, Bank will be entitled to resume process of taking possession / sale of the security from the point where it was 'held on'. The Borrower agrees that in that eventuality, no fresh notice of possession will be issued by the Bank.
5. The Borrower agrees that all other terms and conditions as contained in the loan and security documents continue to be in force and be binding, save and except those modified as above.
6. This Supplementary Agreement is in addition to the loan and security documents executed by the Borrower.

IN WITNESS WHEREOF, the parties hereto have signed these presents on the day, month and year above mentioned.

For _____ (BORROWER)

For [BANK NAME] (AUTHORISED SIGNATORY)